



CHAPTER xxx.

An Act to confirm a Provisional Order of the Local A.D. 1916.
Government Board relating to Lancaster.

[19th July 1916.]

WHEREAS the Local Government Board have made the
Provisional Order set forth in the schedule hereto under
the provisions of the Public Health Act 1875 :

38 & 39 Vict.
c. 55.

And whereas it is requisite that the said Order should be
confirmed by Parliament :

Be it therefore enacted by the King's most Excellent Majesty
by and with the advice and consent of the Lords Spiritual and
Temporal and Commons in this present Parliament assembled
and by the authority of the same as follows:—

1. The Order as amended and set out in the schedule hereto shall be and the same is hereby confirmed and all the provisions thereof shall have full validity and force. Order in
schedule
confirmed.

2. This Act may be cited as the Local Government Board's Short title.
Provisional Order Confirmation (No. 6) Act 1916.

A.D. 1916.

SCHEDULE.

BOROUGH OF LANCASTER.

*Lancaster
Order.*

*Provisional Order for altering the Lancaster Corporation
Act 1880 and the Lancaster Corporation Act 1900.*

To the Mayor Aldermen and Burgesses of the Borough of
Lancaster ; —

And to all others whom it may concern.

WHEREAS the Borough of Lancaster (herein-after referred to as "the Borough") is an Urban District of which the Mayor Aldermen and Burgesses acting by the Council (herein-after referred to as "the Corporation") are the Urban District Council and the local authority within the meaning of the Public Health Act 1875;

43 & 44 Vict. c. lxxvii.
63 & 64 Vict. c. ccxxxvi.
1 & 2 Geo. 5. c. cxlix.

And whereas there are in force in the Borough the unrepealed provisions of the Lancaster Corporation Act 1880 and the Lancaster Corporation Act 1900 (each of which Acts is herein-after referred to as the Act of the year in which it was passed and which Acts are herein-after together referred to as "the Local Acts") as altered by the Lancaster Order 1911 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 14) Act 1911 and by certain other Provisional Orders duly confirmed by Parliament which do not affect the subject-matter of this Order;

And whereas by Section 75 of the Act of 1880 the Corporation were empowered to borrow money for various purposes including the purposes of their gas undertaking;

And whereas by Part II. of the Act of 1900 the Corporation were authorised subject as therein mentioned to make form lay down work use and maintain the tramways therein described and to demand and take rates and charges for the conveyance of passengers upon the tramways;

And whereas the Corporation have made application to the Local Government Board for the issue of a Provisional Order to alter or amend the Local Acts in the manner herein-after set forth;

And whereas by the Lancaster Order 1911 provision was made for the raising and repayment of moneys which the Corporation were

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Provisional Order Confirmation (No. 6) Act, 1916.

thereby authorised to borrow and with respect to the costs of local inquiries : A.D. 1916.

*Lancaster
Order.*

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Acts shall be altered so that the following provisions shall have effect that is to say :— 38 & 39 Vict.
c. 55.

Art. I. The Corporation may with the sanction of the Local Government Board and subject to the provisions of this Order borrow upon the security of the revenue arising from their gas undertaking and of the borough fund and borough rate of the Borough or upon either of those securities such further sums not exceeding in the whole the sum of eighty thousand pounds as may from time to time be necessary for the purposes of their gas undertaking including the provision of working capital : Additional
borrowing
powers for
gas under-
taking.

Provided that such borrowing shall be subject to the provisoes to Section 75 of the Act of 1880.

Art. II.—(1) The Corporation may provide (but shall not manufacture) motor omnibuses and may run the same within but shall not run the same outside the Borough. Authorising
Corporation
to provide
and run
motor omni-
buses.

(2) The Corporation may demand and take for the conveyance of passengers in any of the said motor omnibuses the like rates or charges as they are for the time being authorised to demand and take for passengers travelling on their tramways.

(3) The Corporation may purchase by agreement take on lease and hold lands and buildings within the Borough and may erect on any lands acquired by them for or which they are authorised to appropriate and use for the purposes of this Article or of their tramway undertaking omnibus carriage and motor houses buildings and sheds and may provide such plant appliances and conveniences as may be requisite or expedient for the establishment running and equipment of the said motor omnibuses but the Corporation shall not create or permit any nuisance on any such lands.

(4) The Corporation may make byelaws for regulating the travelling and for the prevention of nuisances in or upon the said motor omnibuses Provided that any such byelaws shall be made subject and according to the provisions of Sections 46 and 47 of the Tramways Act 1870 and those provisions shall apply accordingly. 33 & 34 Vict.
c. 78.

(5) Every motor omnibus moved by electrical power shall be so equipped and worked as to prevent any interference with telegraphic communication by means of any telegraphic line of the Postmaster-General.

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A.D. 1916. (6) The Corporation shall perform in respect of the motor omnibuses
 —
 Lancaster provided under this Article all the services in regard to the convey-
 Order. ance of mails which are prescribed by the Conveyance of Mails Act
 56 & 57 Vict. 1893 in the case of a tramway as defined by that Act and authorised
 c. 38. as in that Act stated.

(7) The undertaking authorised by this Article shall be deemed to form part of the tramway undertaking of the Corporation:

Accounts of Provided that in the accounts of the Corporation relative to that
 receipts and undertaking their receipts and expenditure under this Article shall (so
 expenditure. far as may be reasonably practicable) be distinguished from their
 receipts and expenditure in connexion with the remainder of the
 undertaking.

(8) In this Article the expression "motor omnibus" means any stage carriage moved by mechanical power including in that expression steam electrical and every other motive power not being animal power.

Borrowing (9) The Corporation may with the sanction of the Local Govern-
 powers for ment Board and subject to the provisions of this Order borrow upon the
 purposes of security of the revenue arising from their tramway undertaking and of
 motor the borough fund and borough rate of the Borough or upon either of
 omnibuses. those securities such sums not exceeding in the whole the sum of ten
 thousand pounds as may from time to time be necessary for the purposes
 of this Article.

(10) Any expenditure incurred by the Corporation in connexion with the provision or running of motor omnibuses within the Borough before the date of the Act of Parliament confirming this Order shall be deemed to have been incurred in the exercise of the powers conferred upon the Corporation by this Article.

Period for Art. III. The moneys borrowed under Article I. and Article II. of
 repayment this Order shall be repaid within such period not exceeding sixty years
 of borrowed from the date of borrowing as the Corporation with the sanction of the
 moneys. Local Government Board in each case determine and the period so
 determined and sanctioned shall with reference to the repayment of
 those moneys be the prescribed period for the purposes of the Local
 Loans Act 1875 and of the provisions of the Lancaster Order 1911 as
 applied by Article IV. of this Order.

Repay- Art. IV. The provisions of Article IX. and of Articles XI. to XVII.
 ment &c. of the Lancaster Order 1911 shall with any necessary modifications
 of borrowed apply as if the said Articles were herein re-enacted and in terms made
 moneys. applicable respectively to the moneys borrowed under Article I. and
 Article II. of this Order and to any local inquiry held with reference
 to any of the purposes of this Order.

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Art. V. Notwithstanding anything in this Order the Corporation shall not under the powers of this Order borrow any money during the continuance of the present war and twelve months thereafter unless the consent of the Treasury has been previously obtained.

*Lancaster
Order.*

Consent of
Treasury to
borrowing
during war.

Art. VI. This Order may be cited as the Lancaster Order 1916.

Short title.

Given under the Seal of Office of the Local Government Board
this First day of May One thousand nine hundred and sixteen.

(L.S.)

WALTER H. LONG President.

H. C. MONRO Secretary.

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